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Tentative Ruling

Re: **Vasquez v. Branco Cattle LLC, et al.**
Superior Court Case No. 25CECG02230

Hearing Date: May 19, 2026 (Dept. 503)

Motion: Nine Motions by Defendants Branco Cattle LLC, Farm Credit Leasing, Calvin Cole and Joseph Branco to Compel Further Discovery Responses from plaintiffs Izar Vasquez, Isidro Vasquez and Lucino Vasquez

Tentative Ruling:

To deny the motions as untimely. (Code Civ. Proc., §§ 2030.300, subd. (c); 2031.310, subd. (c).)

Explanation:

On 8/14/2025 defendants Branco Cattle LLC, Calvin Cole and Joseph Branco ("defendants" for purposes of these motions) move to compel further responses from the three plaintiffs to Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production of Documents, Set One. Plaintiffs' responses were served electronically on 9/29/2025.

A notice of motion to compel must be filed and served within 45 days after verified responses, or any verified supplemental responses, were served, unless the parties agree in writing to extend the time. (Code Civ. Proc., §§ 2030.300, subd. (c); 2031.310, subd. (c).) Failure to file a motion to compel further responses within the 45-day time limit waives the right to compel a further response. (*Ibid.*; see *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) The 45-day time limit is mandatory and "jurisdictional" (i.e., the court has no authority to grant a late motion). (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Because the responses were served on 9/29/2025, adding two court days for electronic service (Code Civ. Proc., § 1010.6, subd. (a)(3)), the motion filing deadline was 11/17/2025. The motions were served a month later on 12/18/2025.

Defendants' counsel references a request by plaintiffs' attorney, who was in the process of withdrawing as counsel, that defense counsel refrain from filing motions to compel further responses pending resolution of the motions to be relieved. (Chin Decl., ¶ 8.) Mr. Chin references an Exhibit F, but no Exhibit is attached to the declarations. Thus defendants have not submitted evidence of a written agreement to extend the motion filing deadline. Moreover, the extension of time must specify the date for the extended motion filing deadline. Counsel does not indicate in his declaration that any date was specified. Accordingly, the court lacks jurisdiction to rule on the motions.

The court also notes that defendants did not file a motion to compel further responses from Izar Vasquez to Form Interrogatories, Set One.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 5/17/2025 .
(Judge's initials) (Date)